

Special Meeting
November 8, 2023 4:00 P.M
Town of Chautauqua

A meeting between the Town Board and Zoning Board of Appeal to meet the engineer and Town Attorney to review Solar Law Amendments

Call To Order

1. Review and Discussion of 8/2/23 Solar Law Revisions

Non-Agenda Items

Adjourn Meeting

TOWN OF CHAUTAUQUA- **DRAFT 7/25/8/2/23**

LOCAL LAW NO. X OF 2023
A LOCAL LAW AMENDING REGULATIONS FOR SOLAR ENERGY SYSTEMS

Be it enacted by the Town of Board of the Town of Chautauqua, County of Chautauqua and State of New York, as follows:

SECTION 1. AUTHORITY.

This local law is promulgated pursuant to the authority granted by:

1. Article IX of the New York State Constitution, §2(c)(10);
2. New York Statute of Local Governments, §10(1) and (7);
3. New York Municipal Home Rule Law, §10(1)(i) and (ii) and §10(1)(a), (11), (12), and (14);
4. New York Town Law §130 (11)(peace, good order and safety), (15)(promotion of public welfare); and
5. New York Town Law §64(17-a)(protection of aesthetic interests), (23)(general powers).

SECTION 2. SOLAR ENERGY SYSTEM REGULATIONS.

Section 143-53.2 of the Town of Chautauqua Zoning Code is hereby revised to provide as follows:

Section 143.53.2. Solar Energy Systems.

A. **Purpose.** The Town Board of the Town Chautauqua, exercising the authority granted to under the Town Law of the State of New York to protect the health, safety, and welfare of the residents and property owners of the Town of Chautauqua, does hereby enact this Section to regulate the construction, maintenance and placement of solar energy systems and equipment in the Town of Chautauqua. The purpose of this regulation is to balance the potential impact on neighbors and the environment when solar collectors may be — installed near their property, while preserving the rights of property owners to install solar collection systems without excess regulation. The Town of Chautauqua recognizes the importance of solar energy systems — in generating electricity for on-premise and off-premise use, the reduction of greenhouse gas emissions — and support for emerging solar energy system economic development.

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B. **Definitions.** As used in this Section, the following terms shall have the meaning indicated:

BUILDING-INTEGRATED SOLAR ENERGY SYSTEM A solar energy system that consists of integrating photovoltaic modules into the building structure. Technologies include PV shingles or tiles, PV laminates, and PV Glass. Examples of placement include vertical facades, semi-transparent skylights, awnings, fixed awnings, and roofs.

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GROUND-MOUNTED SOLAR ENERGY SYSTEM: A solar energy system that is anchored to the ground and attached to a pole or similar mounting system, detached from any other structure.

LARGE-SCALE SOLAR ENERGY SYSTEM: A solar energy system that is designed and intended to supply energy primarily into a utility grid for sale and is 30 acres or less in size (defined as the "fenced in area of the system").

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ROOF-MOUNTED SOLAR ENERGY SYSTEM: A solar energy system in which solar panels are mounted on top of the structure of a roof either as a flush mounted system or as modules fixed to frames which can be tilted toward the sun at an optimal angle. Roof mounted systems shall be located on a roof of a permitted principal use or accessory structure.

SMALL-SCALE SOLAR ENERGY SYSTEM: A solar energy system that is intended to generate electricity primarily for on-site use or through a net-metering system (it can be sized to generate power of no more than 110% of the site usage – as documented through NYSERDA).

SOLAR ENERGY EQUIPMENT: Energy storage devices, materials, hardware, or electrical equipment and conduit associated with the production of electrical energy.

SOLAR ENERGY PRODUCTION FACILITY: Energy generation facility or area of land principally used to convert solar energy to electricity, whether by photovoltaics, concentrating solar thermal devices or various experimental solar technologies, with the primary purpose of wholesale or retail sales of electricity.

SOLAR ENERGY SYSTEM: Includes a combination of both solar panels and solar energy equipment.

SOLAR PANEL: A device capable of collecting and converting solar energy into electrical energy.

SOLAR STORAGE BATTERY: A device that stores energy from the sun and makes it available in an electrical form.

UTILITY-SCALE SOLAR ENERGY SYSTEM: A solar energy system that is designed and intended to supply energy primarily into a utility grid for sale and does not meet the definition of a large-scale solar energy system. Includes multiple systems proposed by the same applicant that total over 30 acres (as defined in the Large-Scale solar energy system defined as the "fenced in area of the systems").

C. Applicability.

(b) (1) The requirements of this Section shall apply to all Solar Energy Systems installed or modified after the effective date of the local law by which it was adopted, excluding general maintenance and repair.

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(2) All Solar Energy Systems shall be designed, erected and installed or modified in accordance with all applicable codes, regulations and industry standards as referenced in the New York State Building Code and the Town Code as well as the National Electrical Code (NEC), National Fire Protection Code 70 (NFPA 70), and local and NYS regulations.

(3) Under SEQRA regulations, actions are classified as Type I, Type II, or Unlisted Actions. Type II Actions are exempt from review and include actions such as the construction, expansion or placement of minor or accessory structures. The Town of Chautauqua considers building-integrated solar components and small-scale systems to be Type II Actions and therefore exempt from all SEQRA requirements, including the submission of an EAF (Environmental Assessment Form). Large-scale systems, small-scale systems, utility-scale systems, and solar energy production facilities that meet

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thresholds contained in the SEQRA regulations and are considered more likely than others to have a significant adverse impact shall be considered Type I Actions. However, the need for a complete Environmental Impact Statement (EIS) shall be determined by the permitting board on a case-by-case basis in accordance with the significance of the potential adverse environmental impact.

- D. **Solar as an Accessory Use/Structure.** This section governs the placement and installation of ~~s~~Small-scale ~~s~~Solar energy systems as defined herein. The installation of ~~s~~Small-scale ~~s~~Solar energy systems does require the applicant to obtain a building permit from the Town of Chautauqua.

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~~(b)~~ ~~(1)~~ **Roof-mounted ~~s~~Systems.**

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Roof-mounted ~~s~~Systems are permitted as an accessory use in all zoning districts when attached to a lawfully permitted principal structure and/or accessory structure, subject to the following requirements:

- (a) Height. Solar energy systems shall not exceed maximum height restrictions within any zoning district and are provided the same height exemptions granted to building-mounted mechanical devices and equipment.
- (b) Setback. Solar energy systems are subject to the setback requirements of the underlying zoning district ~~(including any special waterfront lot requirements, if applicable).~~
- (c) Aesthetics. Solar energy equipment shall incorporate the following design requirements:
 - [1] Solar energy equipment shall be installed outside the primary residence or accessory structure and as close to a public utility electrical meter as possible.
 - [2] Roof-mounted ~~p~~Panels facing the front yard must be mounted at the same angle as the roof's surface with a maximum distance of 18 inches between the roof and highest edge of the system.
 - [3] Access and Pathways (NFPA Section 324.7) Roof access, pathways, and spacing requirements for solar photovoltaic systems shall be provided in accordance with NFPA Sections R324.7.1 through R324.7.6, ~~or most recent standards.~~

EXCEPTIONS:

- [a] Roof access, pathways and spacing requirements need not be provided where an alternative ventilation method has been provided, or where vertical ventilation techniques will not be employed.
- [b] Detached garages and accessory units.
- [4] Size of solar photovoltaic array (324.7.1). Each photovoltaic array shall not exceed 150 feet in any direction. (45,720 mm).
- [5] Roof Access Points (324.1.2). Roof access points shall be located:
 - [a] In areas that establish access pathways which are independent of each other and as remote from each other as practicable so as to provide escape routes from all points along the roof.

- [b] In areas that do not require the placement of ground ladders over openings such as windows or doors or areas that may cause congestion or create other hazards.
- [c] At strong points of building construction, such as corners, pilasters, hips, and valleys and other areas capable of supporting the live load from emergency responders.
- [d] Where the roof access point does not conflict with overhead obstructions such as tree limbs, wires or signs.
- [e] Where the roof access point does not conflict with ground obstructions such as decks, ~~fences~~fences, or landscaping.
- [f] In areas that minimize roof tripping hazards such as vents, skylights, satellite dishes, antennas, or conduit runs.

[6] Ground access areas (324.7.3). Ground access areas shall be located directly beneath access roofs and roof access points. The minimum width of the ground access area shall be the full width of the access roof or roof access point, measured at the eave. The minimum depth shall allow for the safe placement of ground ladders for gaining entry to the access roof.

[7] Single ridge roofs (324.7.4). Panels, modules or arrays installed on roofs with a single ridge shall be located in a manner that provides two (2), 36 inches wide (914mm) access pathways extending from the roof access point to the ridge. Access pathways on opposing roof slopes shall not be located along the same plane as truss, rafter, or other such framing system that supports the pathway

EXCEPTIONS:

- [a] Roofs with slopes of 2 units vertical in 12 units horizontal (16.6 percent) and less.
- [b] Structures where an access roof fronts a street, ~~driveway~~driveway, or readily accessible to emergency responders.
- [c] One access pathway shall be required when a roof slope containing panels, modules or arrays is located not more than 24 inches (610 mm) vertically from an adjoining roof which contains an access roof.

[8] Hip roofs (324.7.5). Panels, ~~modules~~modules, and arrays installed on dwellings — roofs shall be located in a manner that provides a clear access than 36 inches (914mm), extending from the roof access on each roof slope where panels, modules or arrays are

EXCEPTIONS:

- [a] Roofs with slopes of 2 units vertical in 12 units horizontal (16.6 percent) or less.

[b] Structures where an access roof fronts a street, driveway or other area readily accessible to emergency responders.

[9] Roofs with valleys (324.7.6), Panels and modules shall not be located less than 18 inches (457 mm) from a valley.

EXCEPTIONS:

[a] Roofs with slopes of 2 units vertical in 12 units horizontal (16.6 percent) or less.

[10] Allowance for smoke ventilation operations (324.7.7). Panels and modules shall not be located less than 18 inches (457 mm) from a ridge or peak.

EXCEPTIONS:

[a] Where an alternative ventilation method has been provided or where vertical ventilation methods will not be employed between the uppermost portion of the solar photovoltaic system and the roof ridge or peak.

[b] Detached garages and accessory structures.

(c) Notification to the Fire Service. Notification in writing to the Fire Department having operational authority at the location where the system will be installed shall be made no later than 10 (ten) days following installation:

[1] Notification shall include a site map showing the location of the solar energy electrical panel, as well as the proper operation of the disconnect switch(s) in the event of a fire or other emergency situation where the homeowner, tenant or other personnel is not available or familiar with the safe shut down operation of unit so as to have the ability to cut power from the solar panels.

[2] In addition a proper written statement showing the method of shut down shall be posted inside the main electrical panel of the unit which can be readily accessible for and to firefighting personnel.

(2) Ground Mounted Systems (Small-Scale solar).

(a) Ground mounted solar energy systems, not meeting the definition of a large-scale or utility scale system, are permitted as an accessory structure in all zoning districts except the Residential-Lakeside (R-L) district, subject to the requirements set forth in this section.

(b) All ground-mounted solar panels in residential districts shall be installed in the rear yard. Ground-mounted solar energy systems are not permitted in the front yard. If a side yard installation is applied for, it shall be subject to all setback requirements of the underlying zoning district, and such an application for side yard shall require site plan review by the Town of Chautauqua Zoning Board of Appeals. For waterfront lots, the application must meet the special requirements for waterfront lots.

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- (c) Setback(s). Ground mounted solar panels are subject to setback requirements of the underlying zoning district, and if applicable, other requirements such as for waterfront lots.

(d) Height. Solar panels are restricted to a height of fifteen (15) feet when located with a _____ minimum set-back distance of ten (10) feet from a lot line; a height of twenty (20) feet _____ when located with a minimum set-back distance of fifteen (15) feet from a lot line; and _____ maximum height of twenty-five (25) feet when located with a setback distance of twenty _____ five (25) feet or greater. All height measurements are to be calculated when the solar _____ energy system is oriented at maximum tilt.

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- (e) Lot Coverage. The surface area of ground mounted solar panels shall be included in lot coverage and impervious surface calculations and shall not exceed thirty percent (30%) of the lot size.

- (f) Other:

[1] Any application for installation and placement of a small-scale solar energy system _____ under this section in a side yard location shall require an application containing a _____ site plan showing the location of all solar energy system components, their _____ location on the premises, their location on the premises in relation to the property _____ line and any and all structures on the premises, and the nearest structure located _____ on the premises adjacent thereto, and any other information requested by the Zoning Board of Appeals.

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- [2] The site plan for such installation shall be reviewed by the Zoning Board of Appeals and shall be approved by a majority thereof.

E. Solar as Principal Use.

Large-scale and utility-scale solar energy systems are permitted by the issuance of a special use permit by the Town Board within the Residential-Agricultural (R-A) District, subject to the restrictions and requirements as set forth in this section.

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(1) Restrictions.

- (a) Large-scale solar energy systems shall not be located in the following areas:

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i. Within 500 feet of the following roads: NAME?

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ii. In an grape orchard

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ii.iii. Within the LWRA boundary of Chautauqua Lake.

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- (b) In addition to the restrictions placed on large-scale solar energy systems,

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utility-scale solar energy systems shall not be located in the following areas:

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i. Within 2000 feet of the LWRA boundary of Chautauqua Lake.

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ii. Within 1000 feet of a designated stream, creek or river.

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The additional restrictions for Large-Scale solar energy systems:

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ii. THE ABOVE RESTRICTIONS CAN BE MODIFIED OR ADDED TO:

(2) General Requirements

- (a) Every application for a large-scale or utility-scale solar energy system within the Town of Chautauqua shall be made to the Town Board and shall be approved by a majority vote thereof.
- (b) Prior to Town Board review of the application it may refer said application to the Zoning Board of Appeals for site plan review, report and recommendation for approval or disapproval.

(c) The Town Board shall hold a public hearing upon ten (10) days' notice duly posted and _____ published in the official newspaper of the Town and on the Town bulletin board, before _____ granting the special use permit. This hearing shall take place after the Zoning Board of Appeals issues their report.

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(d) Once the Town Board makes a final SEQR decision and if the special use permit is approved, the project will return to the Zoning Board of Appeals for final site plan review and approval.

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(2) Special Use Permit Application Requirements. Every application for a Special Use Permit under this section shall contain the following information:

(a) A completed State Environmental Quality Review Act (SEQRA) form (typically a FEAF).

(b) Verification of utility notification. Foreseeable infrastructure upgrades shall be documented and submitted. Off-grid systems are exempt from this requirement.

(c) Name, address, and contact information of the applicant, property owner(s) and agent submitting the proposed project application.

(c) If the property of the proposed project is to be leased, legal consent among all parties, specifying the use(s) of the land for the duration of the project, including easements and other agreements.

(d) Technical drawings signed by a NYS Professional Engineer, showing the layout of the proposed solar energy system, including proposed access roads, landscaping, and screening (see site plan requirements).

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components,

(e) Equipment specification sheets for all photovoltaic ~~panels, significant panels, significant~~ mounting systems, and inverters that are to be installed.

(f) -A property operation and maintenance plan describing continuing photovoltaic maintenance and property upkeep, such as mowing, trimming, and maintenance of landscaping, fencing and other screening components, etc.

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(g) A decommissioning plan:

- [1] To ensure the proper removal of large-scale systems, the decommissioning plan shall include details regarding the removal of all infrastructures and the remediation of soil and vegetation back to its original state prior to construction, unless otherwise permitted. A cost estimate detailing the projected cost of

executing the decommissioning plan shall be prepared by a Professional Engineer or contractor. Cost estimates shall take inflation into account and not reflect any salvage value. *In the case of a lease, the cost of decommissioning shall be borne by the entity or corporation that is leasing the property in question and not the landowner.*

- [2] A form of surety, through escrow, bond or the equivalency of, shall be established during the special use permit process and must be in place prior to the commencement of construction to cover the cost of decommissioning the site. The amount of surety required may not exceed 125 percent of the estimated cost to decommission.

- (h) Stormwater management and erosion and sediment control plans in accordance with § 143-59.1 of the Town of Chautauqua Zoning Code. *Special requirements may be added for projects within the Chautauqua Watershed Area.*

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- (i) A lighting plan. Lighting of the solar energy system shall be limited to that minimally required for safety and operational purposes and shall be reasonably shielded and downcast (dark sky compliant) from adjacent properties.

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- (j) Information on any noise impacts on surrounding homes or other sensitive receptors. The 1-hour average noise generated from the solar energy system shall not exceed 45 decibels, as measured from the property line. If the applicant controls multiple, contiguous parcels, only the exterior boundary of the aggregated parcels shall be considered the "property line" for purposes of measuring noise.

- (k) An assessment of the visual impacts of the solar energy system *(including any above grade poles)* on public roadways and adjacent properties. At a minimum, a line-of-sight profile analysis must be provided. Depending upon the scope and potential significance of the visual impacts, additional impact analyses, including, for example, a digital viewshed report, may be required.

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- (l) An economic impact analysis, if the solar energy system meets the definition of a utility-scale system. The economic impact analysis will be used to determine the effect that the system will have on the economy of the Town, including factors related to commerce, employment, housing, transportation, tourism, education, environmental protection, municipal services, revenues, and taxation.

- (m) An emergency operations plan must be submitted at the time of application. This plan shall address the issues in the Town's guidance document and any additional items that are requested by the Planning Board. The Planning Board will receive input from emergency service providers and others as deemed necessary.

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- If approved, a copy of the approved emergency operations plan shall be given to the system owner, the local fire department, and local fire code official. A permanent copy shall also be placed in an approved location to be accessible to facility personnel, fire code officials, and emergency responders.

- (n) A site plan in accordance with the Town of Chautauqua's site plan requirements and drawn in sufficient detail as follows:

- (i) Plans and drawings of the solar energy system installation signed by a

professional engineer registered in New York State showing the proposal layout of the entire solar energy system along with a description of all components, whether on site or off site, existing vegetation and proposed clearing and grading of all sites involved, and utility lines, both above and below ground, on the site and adjacent to the site; and

(ii) A landscape plan signed by a professional Landscape Architect, including the type of planting under the panels (and a reasoning for its selection); and

(iii) Property lot lines and the location and dimensions of all existing structures and uses on site within 500 feet of the solar panels, and the zoning of the site and surrounding properties; and

(iv) Proposed fencing and/or screening for said project; and

(o) Information on the equipment to be installed, including the requirement that the system components not contain any hazardous substances.

(pe) Information on the environmental and cultural resources (as identified through the NYSDEC Mapping system and by the Town of Hartland/Chautauqua) on the subject property and surrounding properties.

(q) Elevations showing the front and side view of all components of the solar energy system (panels, inverters, etc.).

(rp) Any such additional information as may be required by the Town's professional engineer or consultant, Town of Chautauqua Zoning Board of Appeals, Town Board, Town Attorney, or Code Enforcement Officer.

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(3) Special Use Permit Standards.

(a) All large-scale and utility-scale solar energy systems shall be set back a minimum of 100 feet from any property line, 250 feet from any road right of way, and a minimum of 3500 feet from any residential building, school, place of public worship, or designated historic district or landmark (as measured from the closest fenced area). The system shall also be a minimum of 500 feet from any water well on adjacent properties. If the applicant controls multiple, contiguous parcels, only the exterior boundary of the aggregated parcels shall be considered the "property line" for purposes of determining setbacks.

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(b) All large-scale and utility-scale solar energy systems shall be enclosed by fencing to prevent unauthorized access. Warning signs shall be placed on the entrance and perimeter of the fencing. The height and type of fencing shall be determined by the special use permit process and meeting applicable NYS codes and requirements.

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(c) All large-scale and utility-scale solar energy systems shall have views minimized from adjacent properties and roadways using landscaping that shall, at a minimum, be comprised of evergreen/coniferous trees, at least eight (8) to ten (10) feet in height at the time of planting (depending on site conditions and the results of the visual impact assessment) and at the recommend spacing for the tree species. These trees may need to be planted in a staggered, "zig-zag" pattern to maximize screening. Supplemental deer-resistant shrubs are to be planted between the evergreen/coniferous trees at the reasonable discretion of the Town Board. Use of multiple species is encouraged to prevent disease and contribute to a more naturalistic aesthetic. In some cases, existing vegetation located

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on participated properties may be used to satisfy all or a portion of the required landscaped screening. Berms can also be utilized to reduce the heights of proposed plantings, but the berms must not interfere with site drainage and must be properly designed to maintain vegetation. Suitable tree and shrub species are to be determined by a professional arborist and approved by the Town. All plantings shall be maintained in accordance with the approved property operation and maintenance plan and must be replaced if dead or diseased.

(d)(e) On-site electrical interconnection lines and distribution lines shall be placed underground, unless otherwise required by the utility.

(ed) The removal of trees six (6) inches or more in diameter at breast height shall not exceed 10% of the project area, or five acres, whichever is less. The removal of existing vegetation shrubs, underbrush, and trees under three (3) inches in diameter at breast height shall be limited to the extent necessary for the construction and maintenance of the solar installation. Plans submitted should clearly indicate tree locations and those to be removed (clearing limit).

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(fe) The height of a large-scale or utility-scale solar energy system shall not exceed 250 feet when oriented at maximum tilt. Heights up to 30 feet would be allowed for projects that will have farming under the panels.

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(gf) A large-scale or utility-scale solar energy system shall not be permitted on any parcel that contains 50% or more land classified as prime farmland or farmland of statewide importance by the U.S. Department of Agriculture.

(hg) All components of a large-scale or utility-scale solar energy system shall not contain any hazardous materials that could contaminate soils or the air by their release, including but not limited to lead, cadmium, and PFAS substances. Proof of such shall be submitted at time of application and at time of building permit application. Any proposed changes to the system components including the addition of any anti-glare materials after construction will require coordination with the Town's Building Department and may require return to the Town Board for evaluation of the SUP.

(4) Ownership Changes.

If the owner of the solar energy system changes or the owner of the property changes, the special use permit shall remain in effect, provided that the successor owner or operator assumes in writing all of the obligations of the special use permit, site plan approval, and decommissioning plan. A new owner or operator of the solar energy system shall notify the Code Enforcement Officer of such change in ownership or operator within 30 days of the ownership change. A new owner or operator must provide such notification to the Code Enforcement Officer in writing. The special use permit and all other local approvals for the solar energy system would be void if a new owner or operator fails to provide written notification to the Code Enforcement Officer in the required timeframe. Reinstatement of a void special use permit will be subject to the same review and approval processes for new applications.

(5) Any changes or alterations post-construction to a large-scale or utility-scale solar energy system shall be allowed only by amendment to the special use permit and/or site plan (if required) subject to all requirements of this Code.

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F. **Solar Storage Batteries.**

- (1) If solar storage batteries are included as part of the Solar Energy Collection system, they must be placed in a secure container or enclosure meeting the requirements of the New York State Building Code. All solar storage batteries, their maintenance, placement, and location shall also comply with all applicable rules and regulations as promulgated by New York State Building Code and the National Electric Code.
- (2) When batteries are no longer in use, they shall be disposed of in accordance with the laws of the State of New York and any applicable Federal or Local disposal rules or regulations.

(3) See the Town of Chautauqua's Battery Energy Storage System Law for additional requirements and restrictions.

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G. **Waiver Relief.**

The Town Board recognizes that no regulation can anticipate every creative plan that may be devised, which, though not in strict compliance with the provisions of this article, nevertheless, is not objectionable. Accordingly, the Town Board is hereby empowered to grant relief to an applicant from the strict application of this Section where the applicant provides sufficient grounds for a finding that the proposal comports as much as feasible with the spirit and letter of this Section and, though not in strict compliance therewith, remains aesthetically pleasing, protects neighboring properties, and preserves property values within the Town of Chautauqua.

H. **Maintenance and procedures:**

- ~~(1)4-~~ Time limit on completion: Upon the granting of a special use permit for a large-scale or utility-scale solar energy system, the building permit shall be obtained within twelve (12) months and the project shall be completed within twenty-four (24) months of the granting of the special use permit. If not constructed, the special use permit and site plan approval and building permit shall require new review and approval.
- ~~(2)2-~~ Inspections: Upon reasonable notice, the Town of Chautauqua Building Inspector or his or her designee may enter a lot on which a solar energy system has been approved for the purpose of ensuring compliance with any requirements or conditions. Twenty-four hours' advance notice by telephone to the owner/operator or designated contact person shall be deemed reasonable notice. The applicant/operator shall authorize and cooperate in such inspection. Furthermore, a large scale or utility-scale solar energy system shall be inspected annually or at any other time deemed necessary by the Town's Building Inspector by a New-York-State-licensed professional engineer that has been approved by the Town. Any fee or expense associated with this inspection shall be borne entirely by the permit holder.
- ~~(3)3-~~ General complaint process: During construction, the Town Building Inspector can issue a stop order at any time for any violations of the special use permit or building permit. After construction is complete, the permit holder of a large scale or utility-scale solar energy system shall establish a contact person, including name and phone number, for receipt of any complaint concerning any permit requirements.

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(4)4. Continued operation: A solar energy system shall be maintained in operational condition at all times, subject to reasonable maintenance and repair outages. Operational condition includes meeting all approval requirements and conditions. Further, the Building Inspector shall also have the right to request documentation from the owner of a solar energy system regarding the system's usage at any time.

(5) Annual report: The owner and/or operator of a large-scale or utility-scale solar energy system must submit to the Town's code enforcement officer a yearly report, due no later than February 15, which is certified as accurate and complete under penalty of perjury and contains the following information:

(a) The rated capacity of the system;

(b) The amount of electricity generated by the system in the most recent twelve-month period;

(c) The amount of electricity transmitted to the power grid in the most recent twelve-month period; and

(d) Any damage that has occurred to the system in the most recent twelve-month period, evidence that the damage was repaired (if damage has occurred), and testing of groundwater or wells (if damage has occurred) and the findings of that testing; and

(e) Any updates or maintenance performed to solar energy system components in the most recent twelve-month period and potential plans for such in the coming year.

(6)5. Removal. All solar energy systems shall be dismantled and removed by the owner/operator immediately from a lot when the special use permit or approval has been revoked by the Town of Chautauqua Town Board or the solar energy system has been deemed to be non-operating or abandoned by the Building Inspector for a period of more than 365 days at the cost of the owner. If the owner/operator does not dismantle and remove said solar energy system as required, the Town Board may, after a hearing at which the owner shall be given an opportunity to be heard and present evidence, dismantle and remove said facility and utilize the Bond to remove the solar energy system in accordance with the decommissioning plan. Such action shall be in addition to and not in lieu of any other enforcement remedies the Town may have.

(6)7. Determination of abandonment or non-operation: A determination of the abandonment or non-operation of a solar energy system shall be made by the Town Building Inspector, who shall provide the owner/operator with written notice by personal service or certified mail at the address shown in the records of the Town or the application. Any appeal by the owner of the Building Inspector's determination of abandonment or inoperability shall be filed with the Town of Chautauqua Town Board within 30 days of the Building Inspector causing personal service or mailing certified mail of his written determination and the Board shall hold a hearing on same. The filing of an appeal does not stay the following time frame unless the Town Board or a court of competent jurisdiction grants a stay or reverses said determination. At the earlier of the 366 days from the date of determination of abandonment or inoperability without re-activation approved or upon completion of dismantling and removal, any approvals for the solar energy system shall automatically expire.

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II. Reimbursement of Fees and Expenses.

- (1) An Applicant shall reimburse the Town for any fee or expense incurred in hiring subject matter experts and attorneys to review whether a Solar Energy System proposed for siting pursuant to Article 10 of the New York Public Service Law or Article 94-c of the Executive Law complies with the substance of the provision of this local law.
- (2) The application fees for any review or permit required by this local law shall be set from time to time by resolution of the Town Board.
- (3) An Applicant, whether state or local siting approval shall deliver to the Town Board, along with its application, if local approval is sought, or one-hundred eighty (180) days prior to the filing of an Article 10 or Article 94-C application, if applicable, an amount equal to one percent (1%) of the estimated cost of the project (the "Initial Deposit"). This sum shall be held by the Town in a non-interest-bearing account and shall be available to the Town to pay consultants and attorneys engaged by the Town to assist in its review of and preparation for an Article 10 or Article 94-c application. If the Town be awarded intervenor funds, it shall switch to and deplete those funds before using further use of the Initial Deposit. Following the approval or denial of the state or local siting application, the Town shall return to the Applicant any excess funds remaining in escrow. If the Town account has been depleted prior to approval or denial of the application, the Applicant shall deposit such funds necessary for the Town to pay any outstanding consulting fees.

J. Solar Energy System Public Liability Insurance.

- (1) The holder of a special use permit for a large-scale or utility-scale solar energy system shall agree to secure public liability insurance, and maintain for the duration of the permit, public liability insurance, if the system is:
 - (a) Commercial general liability covering personal injuries, death, and property damage: \$5,000,000 per occurrence (\$10,000,000 aggregate) which shall specifically include the Town of Chautauque and its officers, councils, employees, attorneys, agents, and consultants as additional insureds.
 - (b) Umbrella coverage: \$10,000,000.
- (2) Insurance Escrow: The insurance policies shall be issued by an agent or representative of an insurance company licensed to do business in New York State and with at least a Best's rating of "A."
- (3) Insurance Policy Cancellation: The insurance policies shall contain an endorsement obligating the insurance company to furnish the Town of Chautauque with at least thirty (30) days prior written notice in advance of a policy cancellation.
- (4) Insurance Policy Renewal: Renewal or replacement policies shall be delivered to the Town of Chautauque at least fifteen (15) days before the expiration of the insurance that such policies are to renew or replace.
- (5) Copies of Insurance Policy: No more than fifteen (15) days after the grant of the permit before construction is initiated, the permit holder shall deliver to the Town of Chautauque a copy of each of the policies and certificates representing the insurance in the required amounts.
- (6) Certificate of Insurance: A certificate of insurance states that it is for informational purposes only and does not confer sufficient rights upon the Town of Chautauque; therefore, a certificate of insurance shall not be deemed to comply with this law.

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(7) Indemnification: Any application for a solar energy system within the Town of Chautauqua shall contain an indemnification provision. The provision shall require the Applicant/Owner/Operator to at all times defend, indemnify, protect, save, hold harmless, and exempt the Town of Chautauqua and its officers, councils, employees, attorneys, agents, and consultants from any and all penalties, damages, costs, or charges arising out of any and all claims, suits, demands, causes of action, or award of damages whether compensatory or punitive, or expenses arising therefrom either at law or in equity which might arise out of or are caused by the placement, construction, erection, modification, location, equipment's performance, use, operation, maintenance, repair, installation, replacement, removal, or restoration of said solar energy system, excepting however, any portion of such claims, suits, demands, causes of action or award of damages as may be attributable to the negligent or intentional acts or omissions of the Town of Chautauqua or its employees or agents. With respect to the penalties, damages, or changes referenced herein, reasonable attorneys' fees, consultant fees, and expert witness fees are included in those costs that are recoverable by the Town of Chautauqua.

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K1. Violations.

- (1) Any violation of any provisions of this section shall be punishable by penalty or a term of imprisonment as prescribed in Section 268 of the Town Law of the State of New York.
- (2) Notwithstanding the above, the Town Board of the Town of Chautauqua hereby reserves the right to proceed to enforce the provisions of this section by civil action, injunction, and any other remedy afforded to it by the laws of the State of New York or the United States.

SECTION 3. VALIDITY AND SEVERABILITY.

If any part or provision of this Local Law shall be declared invalid, void, unconstitutional or unenforceable by a court of law, all unaffected provisions hereof shall survive such declaration and this Local Law shall remain in full force and effect as if the invalidated portion had not been enacted.

SECTION 4. EFFECTIVE DATE.

This Local Law shall take effect immediately upon filing with the Secretary of State of the State of New York.

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